

TOWN OF WESTWOOD

Commonwealth of Massachusetts

John Rogers, Chairman
Diane Hayes, Vice
Chair
Brian Gorman
R.J. Sheer
Charles Pare
Todd Sullivan
Todd Weston



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CONSERVATION COMMISSION

Minutes: Conservation Commission Meeting Date: January 11, 2017 at 7:00 p.m.
Location: Champaign Meeting Room, 50 Carby Street, Westwood, MA

7:00 p.m.

The Conservation Commission meeting of January 11, 2017 was called to order at 7:00 p.m. in the Champagne Meeting Room, 50 Carby Street with the following members present: John Rogers, R. J. Sheer, Todd Sullivan, Brian Gorman and Todd Weston. Also present is Karon Skinner Catrone, Conservation Agent.

Approval of minutes – Motion made by Mr. Weston, seconded by Mr. Sullivan to approve the minutes of December 14, 2016. Unanimous.

Discussion Items: Discussion Items:

1. Settlement Agreement – 42 Mill Street - #338-0594 – Delapa – Ms. Catrone states the Commission must sign an ORAD for approval under the Bylaw which was approved on 11/9/16 during Executive Session.

Motion made by Mr. Sheer, seconded by Mr. Weston, to sign the ORAD for approval under the Westwood Wetland Bylaw. Unanimous.

2. Eagle Scout Project – Haslom's Pond – Ms. Catrone states she has spoken with an Eagle Scout Candidate who is interested in removing invasive Bittersweet at the corner of Fieldstone and Farm Roads at Haslom's Pond. Ms. Catrone has worked on identification of these species with the Eagle Scout Candidate. We will visit the site and discuss his project in detail prior to start of work. I spoke to Mike Jaillet about a presentation at Town Meeting and he does not think it is the best forum. The scout could possibly do an article for the town's newsletter or a presentation for the Commission.

She states she will speak to the DPW about the use of herbicide after the troop has removed the invasive plants. Mr. Sullivan asks Ms. Catrone to speak to the DPW about stumps and trees in the area of the dam.

Action Items

1. Minor Modification to an RDA - 14 Thatcher Street – Krumsick – Ms. Catrone states the applicant would like to remove the requirement for a drywell because he is installing a cartridge filter which does not require backwashing. She states the pool may still require a seasonal drawdown and this should be done through a drywell. She has spoken to the Lina Shea, Board of Health Director, and she agrees a drywell should be installed. The Commission agrees unless we get some other information, the pool may need maintenance or a seasonal drawdown so they are requiring the drywell. Regardless if the pool is chlorine or salt the drywell is necessary. The discharge would impact the wetland.

Motion made by R.J. Sheer, seconded by Mr. Weston, to deny the Request for Minor Modification, which will require the installation of the drywell. Unanimous.

Mr. Gorman states he agrees with the Board of Health.

2. Certificate of Compliance – 1450 High Street – #338-0494 – Bryksa – Ms. Catrone states there are several changes noted on the Engineer's Letter but all are insignificant. I inspected the site on 1/11/17. There is a lot of

lawn clippings and debris in rear yard. She recommends the Commission issue the Certificate of Compliance conditional on the removal of the yard waste and debris.

Motion made by Mr. Weston, seconded by Mr. Sheer, to approve the Certificate of Compliance with the condition debris and yard waste is removed. Unanimous.

3. Partial Certificate of Compliance – 1561 High Street - #338-0520 - Musto – Ms. Catrone states she inspected the site on 1/6/17. There is a lot of debris on the site and drainage for these units has not been tied into the detention basin. The Planning Board has requested the Commission not approve a Partial Certificate until he completes the drainage work.

Mr. Rogers states he is not in favor of approval because the area is not stabilized.

Mr. Musto states he is just asking for a Partial Certificate of Compliance. The erosion control has been installed. He has just finished grading the back of units 31 and 33. We will not be looking for a Complete Certificate of Compliance until all work is completed.

Mr. Rogers states the Commission and Planning Board's conditions have not been met. I do not feel comfortable with issuing the Partial Certificate of Compliance.

The Commission agrees Mr. Musto needs to meet the required conditions of the Commission and return to the next meeting. The members request Ms. Catrone speak with the Planning Board Agent and see what conditions they want Mr. Musto to satisfy to meet their approval.

Mr. Musto states the trees on the detention basin side are in compliance.

Ms. Catrone states she will meet with the Planning Board Agent tomorrow.

Motion made by Mr. Sheer, seconded by Mr. Sullivan, to continue this action item to the January 25, 2017 meeting at 7:00 p.m. Unanimous.

4. Minor Modification – 81 Morgan Farm Road - #338-0569 – Petrozzi – Ms. Catrone states a propane tank is proposed in the rear of the property. The pool has been approved closer to the wetland than the proposed tank. Ms. Catrone states she recommends approval of the Request for Minor Modification.

Motion made by Mr. Rogers, seconded by Mr. Sheer, to approve the request for Minor Modification. Unanimous.

5. Extension Request – 81 Morgan Farm Road - #338-0569 – Petrozzi – The applicant is requesting a three year extension. The previous Commission only granted one year extensions. The Planning Board is holding a bond for the completion of the subdivision.

Ms. Catrone states she recommends a one year extension of the Order of Conditions to allow the completion of this project and the subdivision.

Motion made by Mr. Rogers, seconded by Mr. Sheer, to issue a one year extension of the Order of Conditions. Unanimous.

6. Extension Request – 80 Morgan Farm Road - #338-0582 – Petrozzi - The applicant is requesting a three year extension. The previous Commission only granted one year extensions. The Planning Board is holding a bond for the completion of the subdivision. Ms. Catrone states she recommends a one year extension of the Order of Conditions to allow the completion of this project and the subdivision.

Motion made by Mr. Rogers, seconded by Mr. Sheer, to issue a one year extension of the Order of Conditions. Unanimous.

7. Extension Request – 88 Morgan Farm Road - #338-0566 – Petrozzi The applicant is requesting a three year extension. The previous Commission only granted one year extensions. The Planning Board is holding a bond for the completion of the subdivision. Ms. Catrone states she recommends a one year extension of the Order of Conditions to allow the completion of this project and the subdivision.

Motion made by Mr. Rogers, seconded by Mr. Sheer, to issue a one year extension of the Order of Conditions. Unanimous.

8. Extension Request – 83 Morgan Farm Road - #338-0567 – Petrozzi - The applicant is requesting a three year extension. The previous Commission only granted one year extensions. The Planning Board is holding a bond for the completion of the subdivision. Ms. Catrone states she recommends a one year extension of the Order of Conditions to allow the completion of this project and the subdivision.

Motion made by Mr. Rogers, seconded by Mr. Sheer, to issue a one year extension of the Order of Conditions. Unanimous.

Hearings

RDA – 1412 High Street – Gearnon - Ms. Catrone states this is an After-the-fact RDA for tree cutting in the buffer zone. This hearing was continued from the last meeting because abutters were not notified. Due to some confusion of the meeting date, the applicant failed to notify abutter's within an appropriate time and must continue the hearing to January 25, 2017.

Motion made by Mr. Rogers, seconded by Mr. Sheer, to continue this hearing to January 25, 2017 at 7:00 p.m. Unanimous.

Notice of Intent –DEP #338-? – 290 Burgess Ave. – Morrell - Ms. Catrone states this was originally filed as an RDA but she requested the applicant submit an NOI after seeing how much work was proposed. The applicant is requesting an Order of Conditions to remove 19 mature trees.

Ms. Catrone states she has the following comments:

1. The wetland line is not accurate.
2. There is no mitigation proposed. (1 tree for every 450 sq. ft.) The applicant is showing 6 proposed shrubs.
3. The applicant is proposing straw wattle and silt fence as mitigation in the narrative but only a straw wattle is shown on the plan detail. I believe the Commission would prefer compost sock or filter mitt and orange construction fence.
4. The NOI is filed only under the Westwood bylaw.
5. The rear yard is covered in Bittersweet. An invasive removal plan should be requested.

Present are Rick Morell owner of 290 Burgess Avenue and Susan McAurthur, Wetland Consultant, requesting an Order of Conditions to remove 18 trees, regrade the area, add loam and grass.

Abutter notices are submitted for the file.

Ms. McAurthur states this is a bylaw filing only. The Isolated Wetland is not jurisdictional under the state.

Mr. Morrell states the existing pool and house will be demolished.

Ms. Catrone states there is a lot of Bittersweet in rear of the yard. I would suggest the Commission request an invasive removal plan. She points out there is a substantial drop in the topography in the rear yard.

She states the Commission generally prefers to see compost sock and orange fence used for erosion control and infiltration.

Mr. Morrell agrees to add a drywell to the plan. He states the request for tree removal is for safety reasons and there is a lot of ledge. A tree line will be added to meet the Commission's tree policy.

Mr. Rogers asks that he stagger the trees to make it look more natural.

The Commission requests Ms. Catrone look at the soils.

Motion made by Mr. Rogers, seconded by Todd Sullivan, to continue the hearing to the January 25, 2017 meeting to allow the applicant to complete the following, add compost sock, orange construction fence and cultex units to the plan. If approved the following should be part of the motion, impervious surfaces are to be kept clean at all times throughout the duration of the project and the trees should be scattered.

Unanimous.

Notice of Intent –DEP #338-0631 – Stonemeadow Drive, Map 05, Lot 126 – Bugazi

Present is John Bensley and Christie Denis of Beals and Thomas requesting an Order of Conditions for site clearing and grading for a single family home at lot 126 Stonemeadow Drive. The house is outside the buffer zones.

Ms. Catrone states she called Mr. Bensley yesterday and gave him the following comments:

1. If the pool fence is higher than 6 feet the applicant must file with the Zoning Board.
2. The drywell does not appear to be adequate given the size of the project.
3. The stakes proposed for the compost sock should not be driven through the sock. They should be placed behind it to hold it in place.
4. Driveway run-off should be redirected away from street.

John Bensley states the project is associated with Lee Pond. There is an isolated wetland on the west side of the property. Although this is not jurisdictional under the State we have honored the 35 foot no touch.

He states there are two driveways and the utilities are underground. There is an irrigation well outside the buffer. A pool with a four (4) foot fence is proposed.

The drainage in the rear of the property sheet flows. We are proposing a 5000 gallon cistern for irrigation with a drywell used for overflow. There is also an overflow pipe that runs out the back with rip rap at the outlet. Mr. Benley states both drive ways will pitch toward the lawn. Twelve (12) trees are to be planted to meet Westwood's tree policy. Compost sock and orange construction fence are proposed as erosion control. A construction exit can be added as a condition of the Order of Conditions. We have submitted filings to the Zoning and Planning Boards. Mr. Rogers asks how the slope will be stabilized. Mr. Bensley states the applicant will do plantings. The increase in impervious is 18,500 sq. ft. on site. This includes the house and the driveway. Mr. Rogers states the pool should go through the drywell. We would like to see this on the plan.

Motion made by Ms. Weston, seconded by Mr. Pare to issue an Order of Conditions with the condition a construction exit be constructed on site and contingent on the receipt of the DEP file number. Unanimous.

Motion made by Mr. Pare, seconded by Mr. Sullivan to adjourn the meeting. Unanimous.

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